

OREGON STATE HOSPITAL

POLICY

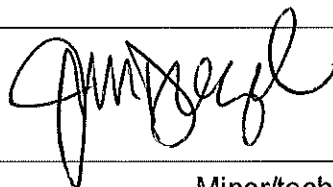
SECTION 6: Patient Care **POLICY: 6.020**

SUBJECT: Language Services for Patients

POINT PERSON: Legal Affairs Director

APPROVED: Jim Diegel

Interim Superintendent



DATE: 8/13/2025

SELECT ONE: ☐ New policy

☒ Minor/technical revision of existing policy

☐ Reaffirmation of existing policy

☐ Major revision of existing policy

I. PURPOSE

The purpose of this policy is to ensure that Oregon State Hospital (OSH) patients with limited English proficiency (LEP) receive meaningful access to all services, treatment, and programs in their primary language. This is accomplished by providing timely and effective language services—including authorized bilingual employees, professional interpreters, and translated documents—at all points of contact, beginning at admission. The policy also establishes guidelines to prevent the use of family members or friends as interpreters and restricts the use of personal devices for language services, thereby promoting clear communication, patient safety, and compliance with legal and regulatory standards.

II. GUIDELINES

- A. OSH patients with LEP will have meaningful access to services, treatment, and programs in their primary language at all points of contact through provision of language services by:
 - 1. Authorized bilingual employees;
 - 2. Interpreter services provided by contracted interpreters in person, over the telephone or video phone; or
 - 3. Document translation services provided through authorized translators.
- B. Language services must be provided at the earliest point of a patient's hospitalization - ideally at the point of admission if the patient's language needs are known.

- C. If a patient's family member or significant other needs an interpreter to communicate with staff, OSH must arrange for interpreter services.
- D. A patient or their family member, significant other, or friend may not be used as an interpreter or translator.
- E. In accordance with Department of Administrative Services policy and protected health information regulations, staff may not use a personal device such as a computer or phone to provide a patient with language or interpreter services.
- F. If an interpreter is injured, provisions of OSH policies 8.002, "Emergency Care Provided to Health Care Personnel and the Public", and 8.038, "Medical Emergency (Code Blue)", must be followed.
- G. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.

III. DEFINITIONS

- A. "Authorized bilingual employee" means an OSH employee proficient in one or more languages in addition to English, including signing for the deaf and hard of hearing, whose position description requires the employee to use their bilingual skills, and who has been approved by the OSH Human Resources Office to receive compensation for providing translation or interpretation assistance to patients.
- B. "Authorized translator" means a contractor approved through the DHS/OHA contracting process to provide translation services for DHS/OHA written materials.
- C. "Bilingual skills" refers to translation to and from English, interpretation of another language, or the use of sign language.
- D. "Contracted interpreter" means a person certified or qualified in the State of Oregon as a conversational, court, or health care interpreter, or a person certified by the National Registry of the Interpreters of the Deaf who is under contract with OSH to provide interpreter services.
- E. "Interpretation" as used in this policy means the transfer of an oral communication from one language to another, including sign language for the deaf and hard of hearing.

- F. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at OSH.

IV. PROCEDURES

Procedures A Language Services for Patients

V. REFERENCES

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Shared Services. Ordering translated documents, DHS-050-001-02. Author.